

26STCP00987 26STCP00987

County: los-angeles

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Case Number: 26STCP00987 Hearing Date: September 1, 2026 Dept: 836

ORDER TO SHOW CAUSE

RE: PRELIMINARY INJUNCTION

Date: 9/1/26

(1:30 PM)

Case: Safari Club Intl, et al.

v. California Dept of Fish and Wildlife. et al. (26STCP00987)

TENTATIVE RULING:

Petitioners' request for a preliminary injunction is DENIED.

I. BACKGROUND

On March 10, 2026, petitioners Safari Club International, California Rifle & Pistol Association, Incorporated, California Bowmen Hunters/State Archery Association, HOWL for Wildlife, Inc., California Deer Association, and Coalition to Save Catalina Island Deer initiated this writ action against respondent California Department of Fish and Wildlife ("Department"), naming the Catalina Island Conservancy ("Conservancy") as the real party in interest. The operative Second Amended Petition ("SAP") was filed on August 6, 2026. As framed by the SAP, petitioners challenge the Department's decision to exempt from CEQA review and to approve the Conservancy's project that includes culling the mule deer on Santa Catalina Island ("Island"). (SAP ¶ 1.) In addition to raising a claim of CEQA violation (SAP ¶¶ 86-139), petitioners allege that the Department's actions have violated the Wildlife Public Trust

(Fish & Game Code §§ 711.7, 1600-1616) (SAP ¶¶ 140-150), constitute a public nuisance (SAP ¶¶ 151-162), and are ultra vires (SAP ¶¶ 163-173). Petitioners also assert a writ of administrative mandate claim per CCP § 1094.5 on the basis that the Restoration Management Permit was invalidly issued. (SAP ¶¶ 174-200.)

Petitioners move for a preliminary injunction restraining the Department and the Conservancy from “deer baiting, luring, and assessment activities intended to facilitate take; shooting, capture, tranquilization, sterilization, collaring, transport, removal, and euthanasia of deer; herbicide application, including aerial application; invasive-vegetation removal and other ground-disturbing habitat treatment; and installation of fencing or infrastructure tied to the Island-wide restoration project described in the [SAP].” (Notice of Mtn. at 2:5-16.) The motion is opposed.

II. DISCUSSION

A. Judicial Notice

Petitioners’ request for judicial notice is GRANTED pursuant to Evidence Code § 452(c) as to the following documents: (1) the Notice of Exemption filed by the Department January 28, 2026 (Ex. A); (2) Notice of Exemption filed by the Department on February 2, 2026 (Ex. B); (3) Excerpts of the “Restoration Management Permit No. RMP 2025-0017-R5, Catalina Island Restoration Project” issued by the Department on January 30, 2026 to the Conservancy (Ex. C); (4) a copy of “A Quick Guide to Restoration Planning with Cutting the Green Tape” published by the Department (Ex. D); (5) “Catalina Island Conservancy & CDFW Private Lands Management Program – 2022 Annual Report” (Ex. E); (6) the Department’s webpage entitled “Chronic Wasting Disease Surveillance” (Ex. F); and (7) a compilation of representative “California Environmental Quality Act Statutory Exemption for Restoration Projects” (Ex. H).

The Conservancy’s request for the Court to take judicial notice of Exhibits E-K found in the SAP is GRANTED. (Evid. Code § 452(d); *Nealy v. County of Orange* (2020) 54 Cal.App.5th 594, 596- 97.)

B. The Balance of Harms

In deciding whether to issue a preliminary injunction, the Court considers the likelihood that the plaintiff will prevail on the merits and the relative balance of harms that is likely to result from the granting or denial of the interim injunctive relief. (*Mae M. v. Komrosky* (2025) 111 Cal.App.5th 198, 203 [citing *Tulare Lake Canal Co. v. Stratford Public Utility Dist.* (2023) 92 Cal.App.5th 380, 396].) With respect to evaluating the balance of harms, the Court compares the interim harm the plaintiff is likely to sustain if the injunction is denied to the harm the defendant is likely to suffer if the preliminary injunction is issued. (*Id.*)

Here, petitioners assert that they would face irreparable injury due to implementation of the first phase of the Restoration Management Permit (“RMP”), which consists of establishing baiting sites and conducting mobile shooting of deer on the Island (excluding Avalon) during September and October 2026. (Mtn. at 26:12-16; Pet. RJN, Ex. C at 6-7.) Petitioners claim that the harm is irreversible because “even a single deer [that] is baited and shot, captured, or euthanized under an invalid permit” cannot be restored by a later judgment. (Mtn. at 26:17-19.)

To begin with, irreparable harm cannot be established through the violation of law itself. Thus, in evaluating harm for purposes of preliminary injunctive relief, petitioners incorrectly focus on the fact that the killing of any one particular deer pursuant to the purportedly invalid RMP is permanent. (See *Cohen v. Board of Supervisors* (1986) 178 Cal.App.3d 447, 454 [holding that the law “demands consideration of interim harm as a related but distinct question from the underlying merits of the challenge”].)

As for the claim that the Island’s mule deer population would suffer a devastating reduction in its population that would ensure its elimination before this matter can be heard on its merits, which is the relevant focus, the Court finds that such a contention is unsupported by the evidence. The present mule deer population is estimated to be 2,000. (Dennhardt Decl. ¶ 11.) Pursuant to the RMP, the estimated timeline for the removal efforts spans roughly six years. (Pet. RJN Ex. C at 6-7.) The initial phase consists of a “pre-removal assessment” that is set to occur for only two months between September and October 2026, and the actual eradication phase is not set to occur until June 2027. Thus, the harm is not immediate.

Moreover, the initial phase will only impact an estimated

200 deer, which only reflects 10% of the current population and is comparable to the Island's history of annual hunting seasons. (Dennhardt Decl. ¶¶ 12-15 & Ex. A [Island Restoration Scientific Assessment at pp. 14-15] and Ex. B [Workplan at pg. 15].) While 200 is not the enforceable limit under the RMP, petitioners fail to point to any evidence suggesting that more deer are likely to be eradicated during the two-month, initial phase. Rather, this initial phase is designed to "inform methodologies and logistics for the Conservancy's eradication efforts and the Island's "rough terrain, dense vegetation, and limited road access make[] it impossible to remove the Island's large deer herd on a short timeframe." (Dennhardt Decl. ¶ 12.) Moreover, even though petitioners assert that 200 additional tags have been authorized for the 2026 hunting season (Reply at 8:15-16), even the eradication of roughly 400 deer would not irreparably harm the deer population. (See Dennhardt Decl. ¶ 15 ["the most deer removed in a single year was 402 deer in 2007, followed by 379 deer in 2024]; see also Van Duren Decl. ¶ 9 [noting a "much higher" deer eradication rate than 13% of the population would be necessary even to "initiate a population decline"].) Consequently, because recreational hunting activity has not significantly reduced the deer population on the Island and the contemplated eradication of 200 deer as part of the initial phase "will not materially impact the Island's deer population" (Dennhardt Decl. ¶ 16), the harm that petitioners complain of is neither permanent nor irreparable. (See *Amoco Prod. Co. v. Vill. of Gambell* (1987) 480 U.S. 531, 545.)

By contrast, the Conservancy submits evidence establishing that the injunctive relief petitioners request would cause great harm if granted. For example, delay in initiating the Restoration Project places at risk of extinction certain Island species, including, among others, the Santa Catalina Island mountain-mahogany, the Catalina Hutton's vireo bird species, and the island scrub oak. (Dennhardt Decl. ¶ 18.) Further, delay in implementing the project may jeopardize the ability to procure and retain at a later date the necessary services of the skilled contractors already hired for such work in September and October (Dennhardt Decl. ¶¶ 22-24), require the Conservancy to lay off some of its staff (Solomon Decl. ¶ 6), and place at risk the long-term, restricted funding secured for the project (Solomon Decl. ¶¶ 7-9).

Accordingly, petitioners fail to demonstrate that the balance of harms weighs in favor of granting the requested relief. Indeed, because the balance of harms so greatly favors the Department and Conservancy given the lack of any demonstrated harm

to petitioners, the Court does not address whether petitioners have any reasonable probability of success on their asserted claims. (See *Butt v. State of California* (1992) 4 Cal.4th 668, 678; *O'Connell v. Superior Court* (2006) 141 Cal.App.4th 1452, 1468 ["The ultimate goal of any test to be used in deciding whether preliminary injunction should issue is to minimize the harm which an erroneous interim decision may cause"].)

III. CONCLUSION

For the foregoing reasons, the Court DENIES petitioners' request for a preliminary injunction. The temporary restraining order issued on 8/11/26 is hereby discharged.